

nian courts, the witnesses who were summoned to attend the trial had their choice of three things; either to swear to the truth of the fact in question, to deny or abjure it, or else to pay a fine of a thousand drachmas^s.

ALL witnesses, that have the use of their reason, are to be received and examined, except such as are *infamous*, or such as are *interested* in the event of the cause. All others are *competent* witnesses; though the jury from other circumstances will judge of their *credibility*. Infamous persons are such as may be challenged as jurors, *propter delictum*; and therefore never shall be admitted to give evidence to inform that jury, with whom they were too scandalous to associate. Interested witnesses may be examined upon a *voir dire*, if suspected to be secretly concerned in the event; or their interest may be proved in court. Which last is the only method of supporting an objection to the former class; for no man is to be examined to prove his own infamy. And no counsel, attorney, or other person, intrusted with the secrets of the cause by the party himself, shall be compelled, or perhaps allowed, to give evidence of such conversation or matters of privacy, as came to his knowledge by virtue of such trust and confidence^t: but he may be examined as to mere matters of fact, as the execution of a deed or the like, which might have come to his knowledge without being intrusted in the cause.

ONE witness (if credible) is *sufficient* evidence to a jury of any single fact; though undoubtedly the concurrence of two or more corroborates the proof. Yet our law considers that there are many transactions to which only one person is privy; and therefore does not *always* demand the testimony of two, as the civil law universally requires. "*Unius responsio testis omnino non audiatur*."^v To extricate itself out of which absurdity, the modern practice of the civil law courts has plunged itself into another. For, as they do not allow a less number than two witnesses to

^s Pott. Antiq. b. 1. c. 21.

^v Cod. 4. 20. 9.

^t Law of *nisi prius*. 267.

be *plena probatio*, they call the testimony of one, though never so clear and positive, *semi-plena probatio* only, on which no sentence can be founded. To make up therefore the necessary complement of witnesses, when they have one only to any single fact, they admit the party himself (plaintiff or defendant) to be examined in his own behalf; and administer to him what is called the *suppletory* oath: and, if his evidence happens to be in his own favour, this immediately converts the half proof into a whole one. By this ingenious device satisfying at once the forms of the Roman law, and acknowledging the superior reasonableness of the law of England: which permits one witness to be sufficient where no more are to be had; and, to avoid all temptations of perjury, lays it down as an invariable rule, that *nemo testis esse debet in propria causa*.

POSITIVE proof is always required, where from the nature of the case it appears it might possibly have been had. But, next to *positive* proof, *circumstantial* evidence or the doctrine of *presumptions* must take place: for when the fact itself cannot be demonstratively evinced, that which comes nearest to the proof of the fact is the proof of such circumstances which either *necessarily*, or *usually*, attend such facts; and these are called *presumptions*, which are only to be relied upon till the contrary be actually proved. *Stabitur præsumptioni donec probetur in contrarium*^u. *Violent* presumption is many times equal to full proof^w; for there those circumstances appear, which *necessarily* attend the fact. As if a landlord sues for rent due at michaelmas 1754, and the tenant cannot prove the payment, but produces an acquittance for rent due at a subsequent time, in full of all demands, this is a violent presumption of his having paid the former rent, and is equivalent to full proof; for though the actual payment is not proved, yet the acquittance in full of all demands is proved, which could not be without such payment: and it therefore induces so forcible a presumption, that no proof shall be admitted

^u Co. Litt. 373.

^w *Ibid.* 6.

to the contrary*. *Probable* presumption, arising from such circumstances as *usually* attend the fact, hath also it's due weight : as if, in a suit for rent due 1754, the tenant proves the payment of the rent due in 1755 ; this will prevail to exonerate the tenant^y, unless it be clearly shewn that the rent of 1754 was retained for some special reason, or that there was some fraud or mistake ; for otherwise it will be presumed to have been paid before that in 1755, as it is most usual to receive first the rents of longest standing. *Light*, or rash, presumptions have no weight or validity at all.

THE oath administered to the witness is not only that what he deposes shall be true, but that he shall also depose the *whole* truth : so that he is not to conceal any part of what he knows, whether interrogated particularly to that point or not. And all this evidence is to be given in open court, in the presence of the parties, their attorneys, the counsel, and all by-standers ; and before the judge and jury : each party having liberty to except to it's competency, which exceptions are publicly stated, and by the judge are openly and publicly allowed or disallowed, in the face of the country ; which must curb any secret bias or partiality, that might arise in his own breast. And if, either in his directions or decisions, he mis-states the law by ignorance, inadvertence, or design, the counsel on either side may require him publicly to seal a *bill of exceptions* ; stating the point wherein he is supposed to err : and this he is obliged to seal by statute Westm. 2. 13 Edw. I. c. 31. or, if he refuses so to do, the party may have a compulsory writ against him^z, commanding him to seal it, if the fact alleged be truly stated : and if he returns, that the fact is untruly stated, when the case is otherwise, an action will lie against him for making a false return. This bill of exceptions is in the nature of an appeal ; examinable, not in the court out of which the record issues for the trial at *nisi prius*, but in the next immediate superior court, upon a writ of error, after

* Gilb. evid. 161.

^z Reg. Br. 182. 2 Inst. 487.

^y Co. Litt. 373.